

Present:

Mr. Justice S M Kuddus Zaman

CIVIL REVISION NO.5987 of 2022.

Md. Ali Hossen

....Petitioner

-Versus-

Most. Kohinur Begum

...opposite party

No one appears

...For the petitioner

Mr. Md. Ruhul Amin, Advocate

..For the opposite party

Heard & Judgment on: 29.08.2024.

This Rule was issued calling upon the opposite party to show cause as to why the judgment and decree dated 27.10.2022 (decree being drawn on 29.10.2022) passed by the learned District Judge, Borguna, in Family Appeal No.13 of 2021 affirming the judgment and decree dated 14.02.2021 (decree being drawn on 16.02.2021) passed by the learned Judge of the Paribarik Court, Borguna in Family Case No.19 of 2020 decreeing the suit should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that the opposite party as plaintiff instituted above Family Suit for recovery of her unpaid dower of Tk.2,20,000/- (two lac twenty thousand) and maintenance at the rate of Tk.5000/- (five thousand) per month.

Defendant entered appearance and contested the suit by filing a written statement alleging that the dower of the plaintiff was fixed at Tk.2,70,000/- (two lac seventy thousand) and Tk.50,000/- (fifty thousand) was paid. After marriage the defendant has given cash money and gold ornaments and thereby satisfied full dower of the plaintiff.

At trial plaintiff and defendant examined one witness each. The plaintiff produced and proved the kabinnama which were marked as Exhibit No.1. But the defendant did not produce and prove any document.

On consideration of facts and circumstances of the case and materials on record the learned Judge of the Family Court decreed the suit for remaining dower of Tk.2,20,000/- (two lac twenty thousand) and maintenance at the rate of Tk.3000/- (three thousand) per month from the date of filing of this suit on 08.10.2020.

Being aggrieved by above judgment and decree of the Family Court the defendant preferred Family Appeal No.13 of 2021 to the District Judge, Borguna who on consideration of submissions of the learned Advocates for respective parties and evidence on record

dismissed the appeal and affirmed the judgment and decree of the Family Court.

No one appears on behalf of the petitioner at the time of hearing of this revision.

Mr. Md. Ruhul Amin learned Advocate for the opposite party submits that the Family Court did not give any past maintenance to the petitioner. Maintenance at the rate of Tk.3000/- (three thousand) was paid from the date of filing of the suit. As far as dower is concerned the plaintiff was given unpaid dower of Tk.2,20,000/- (two lac twenty thousand). As such the defendant did not have any cause to prefer any appeal against above judgment and decree of the Family Court. But in order to delay the payment of above decreetal money the defendant has preferred this appeal and when the appeal was dismissed he has preferred a revision without any reasonable cause.

I have considered the submissions of the learned Advocate for the opposite party and carefully examined all materials on record.

The plaintiff claimed past maintenance at the rate of Tk.5000/-(five thousand). The learned Judge of the Family Court refused to give any past maintenance and fixed the maintenance for the plaintiff at the rate of Tk.3000/- (three

thousand) per month from the date of filing of this suit.

As far as the dower is concerned in the kabinnama (Exhibit No.1) the dower of the plaintiff was fixed at Tk.2,70,000/- (two lac seventy thousand) and out of above money Tk.50,000/- (fifty thousand) was paid.

As such the learned Judge of the Family Court on correct appreciation of materials on record rightly decreed the suit for a total amount of Tk.2,32,600/- (two lac thirty two thousand six hundred).

On consideration of above evidence on record the learned District Judge rightly dismissed the appeal and upheld above judgment and decree of the Family Court.

I am unable to find any infirmity or illegality in the impugned judgment and decree of the learned Judge of the court of appeal below.

In above view of the materials on record I do not find any substance in this petition under section 115 of the Code of Civil Procedure and the rule issued in this connection is liable to be discharged.

In the result, the rule is discharged.

Let the lower courts' records along with a copy of this judgment be transmitted down at once.

Md.Kamrul Islam
Assistant Bench Officer.